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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF ERIC DUTRA'S JOINDER AND DEMURRER

Date: October 23, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna M. Whitman
Trial Date: None Set
Action Filed: May 29, 2026

Reservation Number: 238548651533

MEMORANDUM OF POINTS AND AUTHORITIES

Respondent Eric Dutra ("Sgt. Dutra") joins in Respondent California Highway Patrol's ("CHP") Demurrer to the Petition for Writ of Mandate as to all causes of action in the petition on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10, subd. (e).)

Specifically, CHP demurs to the Petition for these reasons: (1) CHP possesses no ministerial duty to certify Petitioner's Form I-918, Supplement B, U Nonimmigrant Status Certification ("Form B") (*see* CHP's Demurrer at 11-13); (2) Petitioner has no clear, present and beneficial right to the performance of a ministerial duty (*see* CHP's Demurrer at 13-15); (3) CHP has no ministerial duty to provide a written explanation for its certification denial in the form demanded by Petitioner (*see* CHP Demurrer at 15-16); (4) the rebuttable presumption of helpfulness is not applicable on the facts alleged (*see* CHP's Demurrer at 16-17); and (5) Petitioner is not entitled to his requested declaratory relief because he seeks advisory opinions on purely legal questions, declaratory relief cannot unwind a past administrative decision, and because Petitioner is not entitled to a writ of ordinary mandate, mooting the declaration Petitioner seeks (*see* CHP's Demurrer at 17-20).

These reasons are relevant to Sgt. Dutra's defenses and demurrer because the basis for Petitioner's requested relief, as articulated in his petition, is the same as to all Respondents, including the individual Respondents. Further, the relief sought by CHP would benefit Sgt. Dutra, as Petitioner alleges that Sgt. Dutra is a "certifying official" within the meaning of Penal Code section 679.10(b). (Pet., ¶ 16.) For these reasons, Sgt. Dutra joins CHP's demurrer to the Petition for Writ of Mandate as to all causes of action in the petition, and adopts the points and authorities filed in support of CHP's Demurrer..

Sgt. Dutra demurs to the petition for one additional reason: Petitioner has not stated facts sufficient to allege that Sgt. Dutra is a "certifying official" within the meaning of Penal Code section 679.10(b). Specifically, the petition alleges that Sgt. Dutra "the assigned investigator and designated recipient on the Supplement B." (Pet., ¶ 16.) However, Section 679.10(b) provides that a certifying official is (1) the head of the certifying entity; (2) a person in a supervisory role

who has been specifically designated by the head of the certifying entity to issue Form I-918 Supplement B certifications on behalf of that agency; (3) a judge; and (4) any other certifying official defined under Section 214.14(a)(2) of the Title 8 of the Code of Federal Regulations. (*See* Penal Code § 679.10(b)(1), (b)(2), (b)(3), (b)(4).) Petitioner thus fails to allege that Sgt. Dutra falls into any of these four categories; accordingly, Sgt. Dutra is not a proper respondent for the relief requested by Petitioner.

Sgt. Dutra therefore respectfully requests that the Court sustain his demurrer without leave to amend.

Dated: July 30, 2026

Respectfully submitted,

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/s/ *Vanessa Ing*
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